

Through Web Circulation



कर्मचारी भविष्य निधि संगठन, मुख्य कार्यालय
Employees' Provident Fund Organisation, Head Office
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)
(Ministry of Labour, Govt. Of India)
भविष्य निधि भवन, 14, भीकाजी कामा प्लेस,
Bhavishya Nidhi Bhawan, 14-Bhikaji Cama Place
नई दिल्ली/New Delhi- 110066

LC-7(3)2010/EPFAT

Date: 06.03.2014

To

All Add. CPFCs (Zone)
All RPFC/OIC in charge of ROs/SROs
All RPFCs, Zonal Training Institutes

07 MAR 2014

**Subject: Availability of Daily Order Sheets of the cases heard at
EPF Appellate Tribunal, New Delhi-reg.**

Sir/Madam,

It is to inform that the Daily Order Sheets of the hearings which take place at EPF Appellate Tribunal are now available at the official website of EPFO. These can be accessed by clicking the EPFAT web link provided on EPFO website or by typing <http://www.epfindia.com/EPFAT/causelist.htm> in the browser.

2. Presently, the Daily Order Sheets for 11.10.2013 onwards provided by EPFAT and uploaded, can be accessed by following the link: <http://www.epfindia.com/EPFAT/causelist Oct-Dec2013.htm>

3. In view of the above development, all RPFCs entrusted with the responsibility of compliance and legal work may be advised to keep track of the development of the cases of their RO/SRO for the following purpose among others:-

- i. For ascertaining that the Panel Advocate is appearing in the case **regularly**.
- ii. For ensuring that the Panel Advocate is pursuing the case efficiently by arguing the case **effectively**.
- iii. For ensuring that undue **adjournments** are not granted to the Appellant Employer and the Panel Advocate argues against the same effectively.

- iv. For ensuring that **waiver of pre-deposit** provided u/s 7-O of the EPF & MP Act is not granted by the Tribunal without valid reasons recorded in writing.
- v. For ensuring that the Employer's **Appeal Admission** is not allowed by the Tribunal without following the provisions provided under the Employees' Provident Fund Appellate Tribunal (Procedure) Rules, 1997, particularly Rule -11(5) of the said rules.
- vi. For ensuring that the **proviso to Rule 11** of The Employees' Provident Fund Appellate Tribunal (Procedure) Rules, 1997 is followed strictly. The said proviso reads:

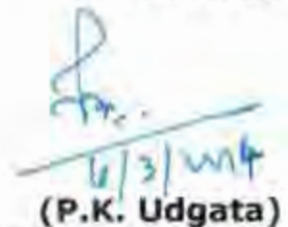
Provided that no appeal shall be heard unless:-

- (i) Notice of appeal has been served on the Central Government, the State Government, or the Central Board if such Government or Board is a respondent.*
- (ii) Notice of appeal has been served on the authority which passed the order against which the appeal has been filed;*
and
- (iii) The Tribunal is satisfied that the interests of the respondents on whom notice of the appeal has not been served are adequately and sufficiently represented by the respondents on whom notice of the appeal has been served.*

- vii. For ensuring that the Panel Advocate effectively argues against any possibility of **reduction of Penal Damages** u/s-14B of the EPF & MP Act by the Tribunal.
- viii. for ensuring that the Panel Advocate does not allow the matters pertaining to **Recovery** to be admitted by the Tribunal.

- ix. **(Limitation)** For ensuring that under no circumstances the Employer Appeals are admitted after the expiry of one hundred twenty days from the date of impugned order (i.e. after the expiry of limitation plus condonation period of sixty days each).
- x. For ensuring that wherever the EPF Appellate Tribunal passes order(s) which patently contravene any legal provision, an appropriate **Writ** is filed immediately in the concerned High Court and followed up.

Yours faithfully



6/3/2019

(P.K. Udgata)

Addl. Central P.F. Commissioner(Compliance)

Tel : 011-26172672

Copy to:

- 1 PS to CPFC
- 2 All Additional CPFCs, Head Office.
- 3 FA & CAO & CVO
- 4 Director NATRSS
- 5 All Panel Advocates (list enclosed)
- 6 RPFC (NDC), for web upload
- 7 DD (OL), for translation



02.03.19

(Anita Sinha Dixit)

Regional P.F. Commissioner –I (Legal)